

23STCV13465 23STCV13465

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-01

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Case Number: 23STCV13465 Hearing Date: September 1, 2026 Dept: 512

HEARING DATE: Tues., September 1, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Merchain

v. LA Dodgers, LLC COMP.

FILED: 06-13-23

CASE NUMBER: 23STCV13465 SAC

FILED: 01-21-26

NOTICE: OK

PROCEEDINGS: MOTION

TO QUASH SUBPOENA FOR BUSINESS RECORDS

MOVING PARTY: Non-Party

Martin Kanarek

RESP. PARTY: Defendants Los Angeles Dodgers, LLC and

Chavez Ravine Land Company LLC

MOTION TO QUASH SUBPOENA

(CCP § 1987.1.)

TENTATIVE RULING:

Non-Party Martin Kanarek's

Motion to Quash LA Dodgers' Deposition Subpoena for Production of Business

Records to Kanarek for Privileged and Protected Records and/or Motion for Protective Order is GRANTED IN PART and CONTINUED IN PART.

The Motion is GRANTED IN PART AND CONTINUED IN PART. The Motion is GRANTED as to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th requests in the subject subpoena.

The Motion is CONTINUED as to these six items. Martin Kanarek is to produce a privilege log as to Request Nos. 1, 8, 13, 14, 17, and 20 in the subpoena. Thereafter, the parties are to submit supplemental briefing prior to the next scheduled hearing to address whether any dispute regarding privilege still exists as to these items.

Further, the Court holds that, pursuant to the parties' previous oral stipulation at the August 5, 2026 hearing on the Motions, the definition of "Jaime Merchain" included in the Kanarek subpoena is to refer solely to Jaime Merchain and family members.

Also pursuant to the parties' previous oral stipulation at the August 5, 2026 hearing on the Motions, the definition of "third-party" included in Request Nos. 8 in the Kanarek subpoena is to refer solely to Jaime Merchain's family members.

Within 10 days from this Court's order, Martin Kanarek is to produce a privilege log as to these six requests for each subpoena. Thereafter, the parties are to submit supplemental briefing at least 7 days prior to the next scheduled hearing to address whether any dispute regarding privilege still exists as to these items.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on July 23, 2026 ☐ Late ☐ None

REPLY: None

filed as of August 28, 2026 ☐

Late ☐ None

ANALYSIS:

I.

Background

On January 21, 2026, Plaintiff Jamie Merchain ("Plaintiff") filed a Second Amended Complaint ("SAC") against Defendant Los Angeles Dodgers, LLC ("LA Dodgers") ("Defendant") and Does 1-50, alleging causes of action for Premises Liability and Negligence.

On March 4, 2026, the Court held an Informal Discovery Conference.

On June 1, 2026, Non-Party Kanarek filed the instant Motion to Quash LA Dodgers' Deposition Subpoena for Production of Business Records to Kanarek for Privileged and Protected Records and/or Motion for Protective Order (the "Motion").

On July 23, 2026, Defendants filed an Omnibus Opposition to the instant Motion as well as other motions.

That same day, the Court continued the hearing on the Motion to September 1, 2026.

On August 3, 2026, Plaintiff filed a Third Amended Complaint ("TAC") against Defendants Los Angeles Dodgers, LLC and Chavez Ravine Land Company LLC ("Defendants") and Does 1-50, alleging causes of action for Premise Liability and Negligence. The underlying action involves Plaintiff tripping and falling over an "uplifted portion of raised asphalt, believed to have been caused by an uplifted tree root... positioned at/near the

Centerfield entrance gate located in the Right Pavilion between the parking lot and Dodger Stadium on April 20, 2022... The fall caused Plaintiff to suffer severe bodily injuries." (TAC, p. 2.)

On August 6, 2026, Defendants filed an Answer to the TAC.

No Reply
to the Motion has been filed.

II.
Procedural
Issues

As an initial matter, the Court notes that the Viselman declaration accompanying the Motion states there are two exhibits attached to the Motion; however, no such exhibits are attached.

The Court notes Defendants' "Omnibus Opposition" is improper given the separate and distinct nature of the Motions. The Court also notes the Omnibus Opposition is just a memorandum of points and authorities and fails to include any evidentiary support.

III.
Legal
Standard

Code of Civil Procedure section 1987.1, subdivision (a) provides, in pertinent part, as follows:

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including

unreasonable violations of the right of privacy of the person.

(Code Civ. Proc., § 1987.1, subd.

(a).)

IV.

Discussion

Kanarek moves to quash the subpoena directed at it on the grounds the subpoena seeks communications and documents protected by the attorney-client privilege and work product privilege as well as the common interest doctrine, and the subpoena imposes an undue burden on Kanarek. (Motion, pp. 6-8.) Should the Court be disinclined to grant the Motion, Kanarek requests the Court issue a protective order regarding the subpoena. (Motion, p. 10.)

In the Omnibus Opposition, Defendants state Kanarek has not met the burden to demonstrate the common interest doctrine applies in this case at all let alone to all the requested documents in the subpoena. (Omnibus Opp., pp. 3-8.) Defendants further state the subpoena is not a fishing expedition, and sanctions should not be awarded as the subpoena was issued in good faith and seek discoverable information directly relevant to the action. (Omnibus Opp., pp. 8-9.)

Here, the Court finds the Kanarek subpoena requests are overly broad in scope. (See Motion, Sep. Statement.) While the Court acknowledges there is some relevance to some of the subpoena's requests as it seeks information from witnesses to the underlying incident in this matter, the subpoenas effectively ask for all communications and documents in Kanarek's possession relating to the instant litigation or the non-parties' case with their client Perez. Given the sweeping nature of these requests, the Court finds the Kanarek subpoena is unduly burdensome and thus unenforceable. (See e.g., *Calcor Space Facility, Inc. v. Sup. Ct. (Thiem Indus., Inc.)* (1997) 53 Cal.App.4th 216, 222-223.)

Further, the Court finds that to the extent the subpoenas request communications or documents between Kanarek and their client, Perez, such requests violate the attorney-client and work product privileges. (See Evid. Code, § 952.)

Insofar as the subpoenas request communications between Kanarek and Plaintiff's counsel in this matter regarding Plaintiff, Defendants, or this action, the Court proceeds to address the work product privilege and the applicability of the common interest doctrine in an abundance of caution.

The 'joint defense privilege' and the 'common interest privilege' have not been recognized by statute in California. [Citations.] For this reason, we will refer to the joint defense or common interest doctrine, rather than the joint defense or common interest privilege, to avoid suggesting that communications between parties with common interests are protected from disclosure by virtue of a privilege separate from the attorney-client privilege, the work product doctrine, or any other statutorily recognized evidentiary privilege.

...

[T]he party seeking to invoke the doctrine must first establish that the communicated information would otherwise be protected from disclosure by a claim of privilege. For example, the content of the communication may comprise information shared in confidence by a client with his or her attorney, a legal opinion formed and advice given by the lawyer in the course of the attorney-client relationship, or a writing reflecting an attorney's impressions, conclusions, or theories. (See Evid. Code, § 952; Code Civ. Proc., § 2018, subd. (c).) The next step in the analysis is to determine whether disclosing the information to a party outside the attorney-client relationship waived any applicable privileges.

...

'There is no statutory provision governing waiver of work product protection. [Citation.]' [Citation.] However, California courts have recognized that the waiver doctrine is applicable to the work product rule as well as the attorney-client privilege. [Citation.] The work product protection may be waived 'by the attorney's disclosure or consent to disclosure to a person, other than the client, who has no interest in maintaining the confidentiality ... of a significant part of the work product.' [Citation.] Thus, work product protection 'is not waived except by a disclosure wholly inconsistent with the purpose of the privilege, which is to safeguard the attorney's work product and trial preparation.'

...

Thus, '[f]or the common interest doctrine to attach, most courts seem to insist that the two parties have in common an interest in securing legal advice related to the same matter—and that the communications be made to advance their shared interest in securing legal advice on that common matter.'

(OXY Resources California LLC v. Superior Court (2004) 115 Cal.App.4th 874, 889-891, as modified.)

Applying these principles to the instant circumstances, the Court finds the communications or documents sought by Defendants' subpoena between Kanarek and Plaintiff's counsel meet the common interest doctrine requirements.

First, the subpoena's requested communications or documentations are so broadly phrased that they encapsulate protected attorney work product of both Kanarek and Plaintiff – e.g., writings reflecting an attorney's impressions, conclusions, opinions, legal research, or theories. (See Code Civ. Proc., § 2018.030.)

Indeed, the Court finds the requests here are broader than other requests where appellate courts have found a party's refusal to produce all requested documents to a nonparty law firm unjustified due to overbreadth. (See *Getz v. Superior Court* (2021) 72 Cal.App.5th 637, 657-658.) For example, in *Getz*, the Third District Court of Appeal found that the common interest doctrine only applied to some of the requested emails from defendant to a nonparty law firm, not all, and thus defendant's refusal to "produce the text of the 42,852 indexed emails" on grounds of overbreadth was unjustified. (*Id.*, at p. 657.) By contrast, the subpoena request here fails to even specify the kind or manner of communications or documents sought from the subject non-parties and instead make sweeping requests that are impossible to meaningfully and narrowly distinguish or differentiate. As such, the Court finds the first requirement of the common interest doctrine is satisfied.

Next, both Plaintiff's counsel and Kanarek in this matter have in common an interest in securing legal advice related to

the same matter of their clients who suffered harm from an identical uplift on Defendants' property in close temporal proximity, and these communications to each other were made to advance their shared interest in securing legal advice and strategy on the common matter of Defendants' liability for the uplift. (Motion, pp. 6-7, Kanarek Decl.)

Further, Kanarek and Plaintiff's counsel did not waive the work product protection as each had an interest in maintaining the confidentiality of a significant part of the work product given that they shared communications "regarding matters including preservation of evidence, investigation of the dangerous condition, notice to the defendants, expert-related issues, litigation strategy, and liability analysis, to name a few." (Motion, pp., 6-7, Kanarek Decl.; OXY Resources California LLC, *supra*, 115 Cal.App.4th at pp. 889-991.)

Accordingly, the Court finds Kanarek has satisfactorily shown the common interest doctrine applies to the communications and documents between Kanarek and Plaintiff's counsel sought by Defendants' subpoena.

To the extent that Defendants state Kanarek is required to produce at least some requested documents in response to the subpoenas or request an Evidence Code section 915 in-camera hearing with the Court regarding the alleged protected/privileged materials, the Court finds an overly broad and unduly burdensome subpoena does not warrant compliance. Further, the Court may not order disclosure of a communication claimed to be privileged to allow a ruling on the claim of privilege. (See *Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 739.)

Finally, while a majority of the subpoena requests are overbroad and/or impermissibly infringe on privileges, the Court finds that certain of the subpoena requests warrant a privilege log. Specifically, the Court finds that Request Nos. 1, 8, 13, 14, 17, and 20 in the Kanarek subpoena warrant a privilege log to ascertain the validity of the asserted privilege claims.

For all these reasons, the Motion is GRANTED IN PART AND CONTINUED IN PART. The Motion is GRANTED as to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th requests in the subject subpoena.

The Motion is CONTINUED as to these six items. Kanarek is to produce a privilege log as to Request Nos. 1, 8, 13, 14, 17, and 20 in the subpoena. Thereafter, the parties are to submit supplemental briefing prior to the next scheduled hearing to address whether any dispute regarding privilege still exists as to these items.

V.

Conclusion
& Order

For the foregoing reasons,
Non-Party Martin Kanarek's Motion to Quash LA Dodgers' Deposition Subpoena for Production of Business Records to Kanarek for Privileged and Protected Records and/or Motion for Protective Order is GRANTED IN PART and CONTINUED IN PART.

The Motion is GRANTED IN PART AND CONTINUED IN PART. The Motion is GRANTED as to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th requests in the subject subpoena.

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Further, the Court holds that, pursuant to the parties' oral stipulation at the August 5, 2026 hearing on the Motion, the definition of "Jaime Merchain" included in the Kanarek subpoena is to refer solely to Jaime Merchain and family members.

Also pursuant to the parties' oral stipulation at the hearing on the Motions, the definition of "third-party" included in Request Nos. 8 in the Kanarek subpoena is to refer solely to Jaime Merchain's family members.

Within 10 days from this Court's order, Martin Kanarek is to produce a privilege log as to these six requests for each subpoena. Thereafter, the parties are to submit supplemental briefing at least 7 days prior to the next scheduled hearing to address whether any

dispute regarding privilege still exists as to these items.

Moving party is ordered to
give notice.

HEARING DATE: Tues., September 1, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Merchain
v. LA Dodgers, LLC COMP.
FILED: 06-13-23

CASE NUMBER: 23STCV13465 SAC
FILED: 01-21-26

NOTICE: OK

PROCEEDINGS: MOTION
TO QUASH SUBPOENA FOR BUSINESS RECORDS

MOVING PARTY: Non-Party
BD&J

RESP. PARTY: Defendants Los Angeles Dodgers, LLC and
Chavez Ravine Land Company LLC

MOTION TO QUASH SUBPOENA

(CCP § 1987.1.)

TENTATIVE RULING:

Non-Party BD&J's
Motion to Quash LA Dodgers' Deposition Subpoena for Production of Business
Records to BD&J for Privileged and Protected Records and/or Motion for
Protective Order is GRANTED IN PART and CONTINUED IN PART.

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SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 23, 2026 ☐ Late ☐ None

REPLY: None

filed as of August 28, 2026 []

Late [] None

ANALYSIS:

I.

Background

On January 21, 2026, Plaintiff Jamie Merchain ("Plaintiff") filed a Second Amended Complaint ("SAC") against Defendant Los Angeles Dodgers, LLC ("LA Dodgers") ("Defendant") and Does 1-50, alleging causes of action for Premises Liability and Negligence.

On March 4, 2026, the Court held an Informal Discovery Conference.

On June 1, 2026, Non-Party BD&J filed the instant Motion to Quash LA Dodgers' Deposition Subpoena for Production of Business Records to BD&J for Privileged and Protected Records and/or Motion for Protective Order (the "Motion") and request for sanctions.

On July 23, 2026, Defendants filed an Omnibus Opposition to the instant Motion as well as other motions.

On August 3, 2026, Plaintiff filed a Third Amended Complaint ("TAC") against Defendants Los Angeles Dodgers, LLC and Chavez Ravine Land Company LLC ("Defendants") and Does 1-50, alleging causes of action for Premise Liability and Negligence. The underlying action involves Plaintiff tripping and falling over an "uplifted portion of raised asphalt, believed to have been caused by an uplifted tree root... positioned at/near the Centerfield entrance gate located in the Right Pavilion between the parking lot and Dodger Stadium on April 20, 2022.... The fall caused Plaintiff to suffer severe bodily injuries." (TAC, p. 2.)

On August 6, 2026, Defendants filed an Answer to the TAC.

No Reply
to the Motion has been filed.

II.

Procedural

Issues

As an initial matter, the Court notes that the Viselman declaration accompanying the Motion states there are two exhibits attached to the Motion; however, no such exhibits are attached.

The Court notes Defendants' "Omnibus Opposition" is improper given the separate and distinct nature of the Motions. The Court also notes the Omnibus Opposition is just a memorandum of points and authorities and fails to include any evidentiary support.

III.

Legal

Standard

Code of Civil Procedure section 1987.1, subdivision (a) provides, in pertinent part, as follows:

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

(Code Civ. Proc., § 1987.1, subd.

(a).)

IV.

Discussion

BD&J moves to quash the subpoena directed at it on the grounds the subpoena seeks communications and documents

protected by the attorney-client privilege and work product privilege as well as the common interest doctrine, and the subpoena imposes an undue burden on BD&J. (Motion, pp. 6-8.) Should the Court be disinclined to grant the Motion, BD&J requests the Court issue a protective order regarding the subpoena. (Motion, p. 10.) Finally, BD&J requests sanctions of \$1,060.00 be awarded against Defendants for the Motion. (Motion, p. 9, Kanarek Decl.)

In the Omnibus Opposition, Defendants state BD&J has not met the burden to demonstrate the common interest doctrine applies in this case at all let alone to all the requested documents in the subpoena. (Omnibus Opp., pp. 3-8.) Defendants further state the subpoena is not a fishing expedition, and sanctions should not be awarded as the subpoena was issued in good faith and seek discoverable information directly relevant to the action. (Omnibus Opp., pp. 8-9.)

Here, the Court finds the BD&J subpoena requests are overly broad in scope. (See Motion, Sep. Statement.) While the Court acknowledges there is some relevance to some of the subpoena's requests as it seeks information from witnesses to the underlying incident in this matter, the subpoenas effectively ask for all communications and documents in BD&J's possession relating to the instant litigation or the non-parties' case with their client Perez. Given the sweeping nature of these requests, the Court finds the BD&J subpoena is unduly burdensome and thus unenforceable. (See e.g., *Calcor Space Facility, Inc. v. Sup. Ct. (Thiem Indus., Inc.)* (1997) 53 Cal.App.4th 216, 222-223.)

Further, the Court finds that to the extent the subpoenas request communications or documents between BD&J and its client, Perez, such requests violate the attorney-client and work product privileges. (See Evid. Code, § 952.)

Insofar as the subpoenas request communications between BD&J and Plaintiff's counsel in this matter regarding Plaintiff, Defendants, or this action, the Court proceeds to address the work product privilege and the applicability of the common interest doctrine in an abundance of caution.

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interest doctrine, rather than the joint defense or common interest privilege, to avoid suggesting that communications between parties with common interests are protected from disclosure by virtue of a privilege separate from the attorney-client privilege, the work product doctrine, or any other statutorily recognized evidentiary privilege.

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[T]he party seeking to invoke the doctrine must first establish that the communicated information would otherwise be protected from disclosure by a claim of privilege. For example, the content of the communication may comprise information shared in confidence by a client with his or her attorney, a legal opinion formed and advice given by the lawyer in the course of the attorney-client relationship, or a writing reflecting an attorney's impressions, conclusions, or theories. (See Evid. Code, § 952; Code Civ. Proc., § 2018, subd. (c).) The next step in the analysis is to determine whether disclosing the information to a party outside the attorney-client relationship waived any applicable privileges.

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'There is no statutory provision governing waiver of work product protection. [Citation.]' [Citation.] However, California courts have recognized that the waiver doctrine is applicable to the work product rule as well as the attorney-client privilege. [Citation.] The work product protection may be waived 'by the attorney's disclosure or consent to disclosure to a person, other than the client, who has no interest in maintaining the confidentiality ... of a significant part of the work product.' [Citation.] Thus, work product protection 'is not waived except by a disclosure wholly inconsistent with the purpose of the privilege, which is to safeguard the attorney's work product and trial preparation.'

...

Thus, '[f]or the common interest doctrine to attach, most courts seem to insist that the two parties have in common an interest in securing legal advice related to the same matter—and that the communications be made to advance their shared interest in securing legal advice on that common matter.'

(OXY Resources California LLC v. Superior Court (2004) 115 Cal.App.4th 874, 889-891, as modified.)

Applying these principles to the instant circumstances, the Court finds the communications or documents sought by Defendants' subpoena between BD&J and Plaintiff's counsel meet the common interest doctrine requirements.

First, the subpoena's requested communications or documentations are so broadly phrased that they encapsulate protected attorney work product of both BD&J and Plaintiff – e.g., writings reflecting an attorney's impressions, conclusions, opinions, legal research, or theories. (See Code Civ. Proc., § 2018.030.)

Indeed, the Court finds the requests here are broader than other requests where appellate courts have found a party's refusal to produce all requested documents to a nonparty law firm unjustified due to overbreadth. (See *Getz v. Superior Court* (2021) 72 Cal.App.5th 637, 657-658.) For example, in *Getz*, the Third District Court of Appeal found that the common interest doctrine only applied to some of the requested emails from defendant to a nonparty law firm, not all, and thus defendant's refusal to "produce the text of the 42,852 indexed emails" on grounds of overbreadth was unjustified. (*Id.*, at p. 657.) By contrast, the subpoena request here fails to even specify the kind or manner of communications or documents sought from the subject non-parties and instead make sweeping requests that are impossible to meaningfully and narrowly distinguish or differentiate. As such, the Court finds the first requirement of the common interest doctrine is satisfied.

Next, both Plaintiff's counsel and BD&J in this matter have in common an interest in securing legal advice related to the same matter of their clients who suffered harm from an identical uplift on Defendants' property in close temporal proximity, and these communications to each other were made to advance their shared interest in securing legal advice and strategy on the common matter of Defendants' liability for the uplift. (See *id.*; Motion, pp. 6-7, Kanarek Decl.)

Further, BD&J and Plaintiff's counsel did not waive the work product protection as each had an interest in maintaining the confidentiality of a significant part of the work product given

that they shared communications “regarding matters including preservation of evidence, investigation of the dangerous condition, notice to the defendants, expert-related issues, litigation strategy, and liability analysis, to name a few.” (Motion, pp., 6-7, Kanarek Decl.; OXY Resources California LLC, *supra*, 115 Cal.App.4th at pp. 889-991.)

Accordingly, the Court finds BD&J has satisfactorily shown the common interest doctrine applies to the communications and documents between BD&J and Plaintiff’s counsel sought by Defendants’ subpoena.

To the extent that Defendants state BD&J is required to produce at least some requested documents in response to the subpoenas or request an Evidence Code section 915 in-camera hearing with the Court regarding the alleged protected/privileged materials, the Court finds an overly broad and unduly burdensome subpoena does not warrant compliance. Further, the Court may not order disclosure of a communication claimed to be privileged to allow a ruling on the claim of privilege. (See *Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 739.)

Finally, while a majority of the subpoena requests are overbroad and/or impermissibly infringe on privileges, the Court finds that certain of the subpoena requests warrant a privilege log. Specifically, the Court finds that Request Nos. 1, 8, 13, 14, 17, and 20 in the BD&J subpoena warrant a privilege log to ascertain the validity of the asserted privilege claims.

For all these reasons, the Motion is GRANTED IN PART AND CONTINUED IN PART. The Motion is GRANTED as to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th requests in the subject subpoena.

The Motion is CONTINUED as to these six items. BD&J is to produce a privilege log as to Request Nos. 1, 8, 13, 14, 17, and 20 in the subpoena. Thereafter, the parties are to submit supplemental briefing prior to the next scheduled hearing to address whether any dispute regarding privilege still exists as to these items.

V.

Conclusion

& Order

For the foregoing reasons,

Non-Party BD&J's Motion to Quash LA Dodgers' Deposition Subpoena for Production of Business Records to BD&J for Privileged and Protected Records and/or Motion for Protective Order is GRANTED IN PART and CONTINUED IN PART.

The Motion is GRANTED IN PART AND CONTINUED IN PART. The Motion is GRANTED as to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th requests in the subject subpoena.

The Motion is CONTINUED as to these six items. BD&J is to produce a privilege log as to Request Nos. 1, 8, 13, 14, 17, and 20 in the subpoena. Thereafter, the parties are to submit supplemental briefing prior to the next scheduled hearing to address whether any dispute regarding privilege still exists as to these items.

Further, the Court holds that, pursuant to the parties' oral stipulation at the hearing on the Motion, the definition of "Jaime Merchain" included in the BD&J subpoena is to refer solely to Jaime Merchain and family members.

Also pursuant to the parties' oral stipulation at the August 5, 2026 hearing on the Motions, the definition of "third-party" included in Request Nos. 8 in the BD&J subpoena is to refer solely to Jaime Merchain's family members.

Within 10 days from this Court's order, BD&J is to produce a privilege log as to these six requests for each subpoena. Thereafter, the parties are to submit supplemental briefing at least 7 days prior to the next scheduled hearing to address whether any dispute regarding privilege still exists as to these items.

Moving party is ordered to give notice.

HEARING DATE: Tues., September 1, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Merchain
v. LA Dodgers, LLC COMP.

FILED: 06-13-23

CASE NUMBER: 23STCV13465 SAC

FILED: 01-21-26

NOTICE: OK

PROCEEDINGS: MOTION

TO QUASH TRIAL SUBPOENA DUCES TECUM

MOVING PARTY: Plaintiff

Jaime Merchain

RESP. PARTY: Defendants Los Angeles Dodgers, LLC and

Chavez Ravine Land Company LLC

MOTION TO QUASH TRIAL SUBPOENA DUCES TECUM

(CCP § 1987.1.)

TENTATIVE RULING:

Plaintiff Jaime Merchain's Motion to

Quash Trial Subpoenas Duces Tecum Issued to California Correctional Health Care

Services and the California Department of Corrections and Rehabilitation is

GRANTED as to its request to modify the subject subpoenas.

Both subpoenas are to be modified and

narrowed as follows: Any and all records of Jamie Merchain (DOB: 09/14/1972, CDCR# T95686) relating to injuries to the neck, head, shoulder and hand, including degenerative conditions, illnesses, diseases, complaints, and treatments bearing on the same conditions, including any records stored digitally and/or electronically, concerning medical history, treatment, diagnosis, prognoses, including medications, color photographs, evaluations, examinations, physiotherapy, flowsheets, pathology, reports, body scans, lab reports, CT Scans, MRIs, Radiological reports, X-Rays, and all other diagnostic tests, images, and procedures, including but not limited to all records for each and every visit, examination and/or treatment, itemized statements of billing charges including write-offs and balances due, insurance records, lab reports, sign-in sheets, nurses' notes, doctor's notes, physical therapy notes,

correspondence, insurance information, surgical records, consultation records and/or reports, prescription and pharmacy records.

The request for sanctions is DENIED.

The request for an in-camera review is DENIED.

Moving party is ordered to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a) OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on August 19, 2026 [] Late [] None

REPLY: Filed on August 24, 2026 [] Late [] None

ANALYSIS:

I. Background

On January 21, 2026, Plaintiff Jamie Merchain ("Plaintiff") filed a Second Amended Complaint ("SAC") against Defendant Los Angeles Dodgers, LLC ("LA Dodgers") ("Defendant") and Does 1-50, alleging causes of action for Premises Liability and Negligence.

On March 4, 2026, the Court held an

Informal Discovery Conference.

On July 10, 2026, Plaintiff filed the instant Motion to Quash Trial Subpoenas Duces Tecum Issued to California Correctional Health Care Services and the California Department of Corrections and Rehabilitation (the "Motion").

On July 23, 2026, the Court continued the Motion to September 1, 2026.

On August 3, 2026, Plaintiff filed a Third Amended Complaint ("TAC") against Defendants Los Angeles Dodgers, LLC and Chavez Ravine Land Company LLC ("Defendants") and Does 1-50, alleging causes of action for Premise Liability and Negligence. The underlying action involves Plaintiff tripping and falling over an "uplifted portion of raised asphalt, believed to have been caused by an uplifted tree root... positioned at/near the Centerfield entrance gate located in the Right Pavilion between the parking lot and Dodger Stadium on April 20, 2022... The fall caused Plaintiff to suffer severe bodily injuries." (TAC, p. 2.)

On August 6, 2026, Defendants filed an Answer to the TAC.

On August 19, 2026, Defendants filed an Opposition to the Motion.

On August 24, 2026, Plaintiff filed a Reply.

II.

Legal

Standard

Code of Civil Procedure section

1987.1, subdivision (a) provides, in pertinent part, as follows:

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably

made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

(Code Civ. Proc., § 1987.1, subd.

(a).)

Code of Civil Procedure section

1987.2, subdivision (a) states: "Except as specified in subdivision (c), in making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive."

III.

Discussion

Plaintiff moves to quash the two subpoenas directed to non-parties California Correctional Health Care Services ("CCHCS") and California Department of Corrections and Rehabilitation, Office of Legal Affairs ("CDCR") on the grounds the subpoenas are unsupported by good cause, seek inadmissible character evidence, are overly broad in scope, violate Plaintiff's right to privacy, and were untimely issued. (Motion, pp. ii-iii, 1, 4-7.) Should the Court not quash the subpoenas entirely, Plaintiff alternatively requests the Court modify the subpoenas to "to reach only: (1) medical records concerning only the neck and left shoulder from 2017 through the present; (3) excluding all billing, insurance, correspondence, sign-in, and pharmacy records; and (4) excluding all disciplinary, behavioral, and institutional records demanded of CDCR." (Motion, p. 7.) Further, Plaintiff requests that "[a]ny records produced should be lodged with the Court for in camera review before disclosure to any party, so that irrelevant and privacy-protected material is never disseminated." (Motion, p. 7.) Finally, Plaintiff requests \$2,000.00 be awarded in favor of Plaintiff and against Defendants for the oppressive subpoena pursuant to Code of Civil Procedure section 1987.2.

(Motion, p. 7, Koppelman Decl.)

In Opposition, Defendants request the Court deny the Motion on the grounds that the subpoenas are supported by good cause; the documents sought by the subpoenas are directly relevant to Plaintiff's claim of injury in the instant action; Plaintiff provided inconsistent discovery responses regarding Plaintiff's injuries sustained while incarcerated which thus necessitated the instant subpoenas; and the subpoenas are properly and timely issued trial subpoenas. (Opp., pp. 1-5.) Throughout the Opposition, Defendants also argue the case law relied upon by Plaintiff in the Motion is distinguishable and/or inapt. However, if the Court is inclined to grant the Motion, Defendants request the subpoenas be modified to request "(1) any documents related to an injury to Plaintiff's head, (2) any documents related to an injury to Plaintiff's neck, (3) any documents related to an injury to Plaintiff's shoulder, and (4) any document related to an injury to Plaintiff's hand." (Opp., p. 6.) Finally, Defendants request that Plaintiff's request for expenses related to the Motion be denied as the subpoenas were properly issued under Code of Civil Procedure section 1985. (Opp., p. 6.)

In Reply, Plaintiff asserts that Defendants' proposed narrowed subpoenas concede overbreadth for the original subpoenas; Defendants' assertions regarding pertinent case law are inapt or incorrect; Defendants concede the subpoenas are being used to secure discovery and thus discovery standards govern; the affidavits supporting the subpoenas are insufficient as a matter of law and not cured by the Opposition or supporting declarations; Defendants' evidence offered in support of the Opposition demonstrates that Plaintiff did not conceal a prior shoulder or neck injury from Defendants; and Defendants failed to address the privacy concerns with the subpoenas raised in the Motion. (Reply, pp. 1-8.) Finally, Plaintiff reiterates that the Court should award Plaintiff reasonable expenses under Code of Civil Procedure section 1987.2 for the oppressiveness of the subpoenas. (Reply, p. 8.)

Here, the Court finds the subpoena requests are overly broad in scope. (See Motion, Exhs. 1-2.) Indeed, the subpoena to CCHCR requests the following:

Any and all records related to Jamie Merchain (DOB: 09/14/1972, CDCR# T95686), including any records stored digitally and/or electronically, concerning medical history, treatment,

diagnosis, prognoses, including medications, color photographs, evaluations, examinations, physiotherapy, flowsheets, pathology, reports, body scans, lab reports, CT Scans, MRIs, Radiological reports, X-Rays, and all other diagnostic tests, images, and procedures, including but not limited to all records for each and every visit, examination and/or treatment, itemized statements of billing charges including write-offs and balances due, insurance records, lab reports, sign-in sheets, nurses' notes, doctor's notes, physical therapy notes, correspondence, insurance information, surgical records, consultation records and/or reports, prescription and pharmacy records, including all dates of service.

(Motion, Exh. 1, Attach. 2.)

Then, the subpoena to CDCR requests the following: "Any and all records related to Jamie Gonzales Merchain (DOB: 09/14/1972, CDCR# T95686), including any records stored digitally and/or electronically, including but not limited to, inmate history, involvement in fights, incident reports, injuries sustained, insubordination, infractions, disciplinary records, and violation reports." (Motion, Exh. 2, ¶ 2.)

The Court acknowledges there is some relevance to the subpoenas' requests as they seek information regarding Plaintiff's injuries sustained prior to the neck and shoulder injuries serving as the basis for this action. (See TAC; Motion; Opp.; Reply.) However, the CCHCR subpoena effectively asks for all medical information about Plaintiff without any limitation based on time or body part, and the CDCR subpoena overreaches into other areas of inquiry beyond Plaintiff's injuries despite the supporting good cause declaration's focus on Plaintiff's injuries and medical history. Given the sweeping nature of these requests, the Court finds the subpoenas are overly broad. (See e.g., *Calcor Space Facility, Inc. v. Sup. Ct. (Thiem Indus., Inc.)* (1997) 53 Cal.App.4th 216, 222-223.)

However, the Court finds the briefs as well as the declarations supporting the subpoenas demonstrate good cause for CCHCR and CDCR to produce documents relating to medical conditions or illnesses that are placed in controversy. That said, the request to limit the subpoenas to "body-party only" is too narrow insofar that it does not take into consideration relevant medical history including prior and contributing history (e.g. degenerative conditions or other illnesses) that could be relevant to causation and damages. (See *Britt v. Superior Court*, (1978) 20 Cal. 3d

844.)

Based thereon, the Court finds that the Defendant is entitled to records relating to prior conditions and injuries related to head, neck, shoulder, and hand, as well as degenerative conditions, illness, or other treatment bearing on the same conditions.

Both subpoenas are to be modified and narrowed as follows:

Nonparty is to produce any documents related to Plaintiff's conditions pertaining to neck, head, shoulder, and hand, including any treatments, complaints, degenerative conditions, illnesses, diseases, or consultations bearing on the same conditions.

The Court finds the subpoenas were issued prior to the Court's 7/17/26 order continuing trial in this matter and in accordance with the Code of Civil Procedure. Notably, as of the date of the instant hearing, there is more than a month until trial in this matter. Further, the Court finds the Opposition and supporting evidence demonstrate that Defendants' subpoenas sought medical documents the existence of which, and the general nature of which, they already knew from Plaintiff's discovery responses. Thus, the modified subpoenas do not contradict *Boal v. Price Waterhouse & Co.* (1985) 165 Cal.App.3d 806 as Plaintiff suggests.

For all these reasons, the Motion is GRANTED as to its request to modify the subject subpoenas.

Given the totality of the circumstances, the Court exercises its discretion and declines to award sanctions as the Court does not find that subpoenas were made or opposed in bad faith or without substantial justification.

IV.

Conclusion
& Order

For the foregoing reasons, Plaintiff Jaime Merchain's Motion to Quash Trial Subpoenas Duces Tecum Issued to California Correctional Health Care Services and the California Department of

Corrections and Rehabilitation is GRANTED as to its request to modify the subject subpoenas.

Both subpoenas are to be modified and narrowed as follows:

Any and all records of Jamie Merchain

(DOB: 09/14/1972, CDCR# T95686) relating to injuries to the neck, head, shoulder and hand, including degenerative conditions, illnesses, diseases, complaints, and treatments bearing on the same conditions, including any records stored digitally and/or electronically, concerning medical history, treatment, diagnosis, prognoses, including medications, color photographs, evaluations, examinations, physiotherapy, flowsheets, pathology, reports, body scans, lab reports, CT Scans, MRIs, Radiological reports, X-Rays, and all other diagnostic tests, images, and procedures, including but not limited to all records for each and every visit, examination and/or treatment, itemized statements of billing charges including write-offs and balances due, insurance records, lab reports, sign-in sheets, nurses' notes, doctor's notes, physical therapy notes, correspondence, insurance information, surgical records, consultation records and/or reports, prescription and pharmacy records.

The request for sanctions is DENIED.

The request for an in-camera review is DENIED.

Moving party is ordered to give notice.

HEARING DATE: Tues., September 1, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Merchain
v. LA Dodgers, LLC COMP.
FILED: 06-13-23

CASE NUMBER: 23STCV13465 SAC
FILED: 01-21-26

NOTICE: OK TAC
FILED: 08-03-26

PROCEEDINGS: MOTION
TO BIFURCATE TRIAL

MOVING PARTY: Defendants
Los Angeles Dodgers LLC and Chavez Ravine Land Company LLC

RESP. PARTY: None

MOTION TO BIFURCATE TRIAL

(Civ. Code, §§ 3294, 3295.)

TENTATIVE RULING:

Defendants Los Angeles
Dodgers LLC and Chavez Ravine Land Company LLC's unopposed Motion to
Bifurcate Punitive Damage Phase of Action Pursuant to Civil Code section 3295
is GRANTED.

Moving parties are ordered
to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of August 28, 2026 ☐ Late ☒
None

REPLY: None
filed as of August 28, 2026 ☐

Late [X] None

ANALYSIS:

I.

Background

On January 21, 2026, Plaintiff Jamie Merchain ("Plaintiff") filed a Second Amended Complaint ("SAC") against Defendant Los Angeles Dodgers, LLC ("Defendant") and Does 1-50, alleging causes of action for Premises Liability and Negligence.

On August 3, 2026, Plaintiff filed a Third Amended Complaint ("TAC") against Defendants Los Angeles Dodgers, LLC and Chavez Ravine Land Company LLC ("Defendants") and Does 1-50, alleging causes of action for Premise Liability and Negligence. The underlying action involves Plaintiff tripping and falling over an "uplifted portion of raised asphalt, believed to have been caused by an uplifted tree root... positioned at/near the Centerfield entrance gate located in the Right Pavilion between the parking lot and Dodger Stadium on April 20, 2022.... The fall caused Plaintiff to suffer severe bodily injuries." (TAC, p. 2.)

That same day, Defendants filed the instant Motion to Bifurcate Punitive Damage Phase of Action Pursuant to Civil Code section 3295 (the "Motion"). Notably, the Court continued the Motion to September 1, 2026, on July 22-23, 2026.

On August 6, 2026, Defendants filed an Answer to the TAC.

No

Opposition to the Motion has been filed.

II.

Legal

Standard & Discussion

Defendants move for an order "bifurcating the trial of this action and precluding admission or subpoena of any evidence pertaining to punitive damages, including any financial evidence concerning any other entity allegedly

related to any of them, unless and until a jury makes a special finding, based upon clear and convincing proof, establishing that any of the Defendants acted with malice, fraud, or oppression." (Motion, pp. 4-5.)

Civil Code section 3295, subdivision (d) provides:

The court shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294. Evidence of profit and financial condition shall be admissible only as to the defendant or defendants found to be liable to the plaintiff and to be guilty of malice, oppression, or fraud. Evidence of profit and financial condition shall be presented to the same trier of fact that found for the plaintiff and found one or more defendants guilty of malice, oppression, or fraud.

(Civ. Code, § 3295, subd. (d).)

Here, the Court finds the TAC in this matter seeks punitive and/or exemplary damages against Defendants. (See TAC, p. 22.) The Court finds Defendants have moved for an order bifurcating the trial so as to "preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294." (See Motion, Civ. Code, § 3295, subd. (d).) As such, the Court finds bifurcation pursuant to Civil Code section 3295, subdivision (d) is mandatory. Further, Plaintiff has not filed an Opposition identifying grounds as to why Defendants' Motion should not be granted.

Thus,
the Motion is GRANTED.

III.

Conclusion
& Order

For the foregoing reasons,

Defendants Los Angeles Dodgers LLC and Chavez Ravine Land Company LLC's unopposed Motion to Bifurcate Punitive Damage Phase of Action Pursuant to Civil Code section 3295 is GRANTED.

Moving parties are ordered to give notice.